

LW5552: INDEPENDENT RESEARCH

Effective Term

Semester A 2025/26

Part I Course Overview

Course Title

Independent Research

Subject Code

LW - Law

Course Number

5552

Academic Unit

School of Law (FL)

College/School

School of Law (FL)

Course Duration

One Semester

Credit Units

3

Level

P5, P6 - Postgraduate Degree

Medium of Instruction

English

Medium of Assessment

English

Prerequisites

#LW5622 Legal methods, Research and Writing (this requirement applies to JD student only)

Precursors

Nil

Equivalent Courses

LW6551E or LW5551

Exclusive Courses

LW6537C/E and LW6137C/E Dissertation (Students who have completed or are taking any of these Dissertation courses are not allowed to take LW5552 Independent Research.)

Part II Course Details

Abstract

This course aims (i) to develop students' ability to identify a suitable topic based on a research gap (ii) to give students the freedom and flexibility to develop their expertise in a subject area of interest through independent library-based and/or empirical research and (iii) to harness writing skills to produce a publishable paper under the supervision and guidance of an experienced staff member.

Course Intended Learning Outcomes (CILOs)

CILOs		Weighting (if app.)	DEC-A1	DEC-A2	DEC-A3
1	Identify a suitable research topic and design a research proposal on an area of law worth pursuing.	10	x	x	
2	Search, read, analyse and cite research materials relevant to one's research proposal.	25	x	x	x
3	Critically apply selected legal theories and techniques to the subject matter of the paper.	25	x	x	x
4	Write a substantial paper of individual research of publishable quality and with an element of originality.	40	x	x	x

A1: Attitude

Develop an attitude of discovery/innovation/creativity, as demonstrated by students possessing a strong sense of curiosity, asking questions actively, challenging assumptions or engaging in inquiry together with teachers.

A2: Ability

Develop the ability/skill needed to discover/innovate/create, as demonstrated by students possessing critical thinking skills to assess ideas, acquiring research skills, synthesizing knowledge across disciplines or applying academic knowledge to real-life problems.

A3: Accomplishments

Demonstrate accomplishment of discovery/innovation/creativity through producing /constructing creative works/new artefacts, effective solutions to real-life problems or new processes.

Learning and Teaching Activities (LTAs)

LTAs		Brief Description	CILO No.	Hours/week (if applicable)
1	Self-directed research and writing.	Each student will be required to work independently, undertaking an individual piece of work related to his/her chosen area of research. Students will be encouraged to devise their own topics, although the supervisor may provide some guidance during regular meetings.	1, 2, 3, 4	7 (approx..)

2	Consultations with supervisor.	The student will follow a systematic monitoring programme, seeking feedback from the supervisor at regular intervals: i. Scheduling an initial meeting at which the independent research paper proposal is discussed including: the proposed research question methodology, background literature, and timetable for research and writing. ii. Presentation of an initial draft to the supervisor for consideration, analysis and comment. iii. Submission of a final draft. This final draft may or may not warrant comment from the supervisor.	1, 2, 3, 4	1 (approx..)
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Additional Information for LTAs

Supervisors are not responsible for the production of research material or for the preparation of the independent research paper. This is the sole responsibility of the student.

Assessment Tasks / Activities (ATs)

ATs		CILO No.	Weighting (%)	Remarks ("- " for nil entry)	Allow Use of GenAI?
1	Coursework (final research paper)	1, 2, 3, 4	100	-	No

Continuous Assessment (%)

100

Minimum Continuous Assessment Passing Requirement (%)

40

Additional Information for ATs

The research paper must be submitted by the end of the semester (the exact date is to be advised in due course). The length of the main text of the research paper must fall in the range of 8,000 to 10,000 words (excluding footnotes). The main text should be supplemented by footnotes as per the most recent version of the Oxford Standard for Citation of Legal Authorities (OSCOLA).

The research paper must be coherent and persuasive. It should be based on sound scholarly research and adequately supported by relevant authorities. Research papers will be assessed for substance, originality, independent thought, breadth of research, quality of presentation, logic, accuracy, and citation style and authorities

The faculty member who supervised the independent research paper and another anonymous faculty member mark the research paper simultaneously. The relevant External Academic Advisor and/or a third marker may moderate assessment of the research paper, especially if there is a significant difference in grades assigned by the supervisor and the second marker.

Assessment Rubrics (AR)

Assessment Task

Independent Research paper (100%) (for students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

Criterion

The paper will be assessed for Originality, Breadth of Research, Citation & Authority, Quality of Presentation, Logic, Accuracy, Independent Thought and Substance.

Excellent

(A+, A, A-) Strong evidence of original thinking; good organization, capacity to analyse and synthesize; superior grasp of subject matter; evidence of extensive knowledge base.

Good

(B+, B, B-) Evidence of grasp of subject, some evidence of critical capacity and analytic ability; reasonable understanding of issues; evidence of familiarity with literature.

Fair

(C+, C, C-) Student who is profiting from the university experience; understanding of the subject; ability to develop solutions to simple problems in the material.

Marginal

(D) Sufficient familiarity with the subject matter to enable the student to progress without repeating the course.

Failure

(F) Little evidence of familiarity with the subject matter; weakness in critical and analytic skills; limited, or irrelevant use of literature.

Assessment Task

Independent Research paper (100%) (for students admitted from Semester A 2022/23 to Summer Term 2024)

Criterion

The paper will be assessed for Originality, Breadth of Research, Citation & Authority, Quality of Presentation, Logic, Accuracy, Independent Thought and Substance.

Excellent

(A+, A, A-) Strong evidence of original thinking; good organization, capacity to analyse and synthesize; superior grasp of subject matter; evidence of extensive knowledge base.

Good

(B+, B) Evidence of grasp of subject, some evidence of critical capacity and analytic ability; reasonable understanding of issues; evidence of familiarity with literature.

Marginal

(B-, C+, C) Student who is profiting from the university experience; understanding of the subject; ability to develop solutions to simple problems in the material.

Failure

(F) Little evidence of familiarity with the subject matter; weakness in critical and analytic skills; limited, or irrelevant use of literature.

Part III Other Information

Keyword Syllabus

Legal Research, Writing, Citation

Detailed Syllabus

There is no formal syllabus. Students undertaking independent research must find a faculty member with relevant research interest and expertise to agree to provide academic supervision. Students should prepare a short research proposal on a subject area of his/her chosen stream of study and obtain approval from the faculty supervisor.

Reading List

Compulsory Readings

Title	
1	Nil

Additional Readings

Title	
1	Selected Background Reading
2	Christina L Kunz, et al., The Process of Legal Research, 5th ed. (Gaithersburg, MD: Aspen Law & Business, 2000).
3	Robert Watt, Concise Legal Research, 4th ed. (Sydney: Federation Press, 2001)
4	Basil S Markesinis (ed.), Law Making, Law Finding and Law Shaping: The Diverse Influences (Oxford; New York: Oxford University Press, 1997)
5	Terry Hutchinson, Researching and Writing in Law (Sydney: Lawbook Co, 2002).
6	John Bahrij, Hong Kong Legal Research: Methods and Skills (Hong Kong: Sweet & Maxwell Asia, 2007).
7	Eugene Volokh, Academic Legal Writing: Law Review Articles, Student Notes, Seminar Papers, and Getting on Law Review, 4th edn (New York: Foundation Press, 2010).
8	James A Holland & Julian S Webb, Learning Legal Rules: A Student's Guide to Legal Method and Reasoning, 11th ed. (Oxford; New York: Oxford University Press, 2022).
9	Sharon Hanson, Legal Method & Reasoning, 2nd ed. (London: Cavendish, 2003)
10	Jill Cottrell, Legal Research: A Guide for Hong Kong Students (Hong Kong: Hong Kong University Press, 1997).
11	Faculty of Law, University of Oxford, Oxford Standard for Citation of Legal Authorities (2012).
12	Bryan A Garner, Legal Writing in Plain English: A Text with Exercises (Chicago: University of Chicago Press, 2001).
13	Paul Kossof, Chinese Legal Research (Durham NC: Carolina Academic Press, 2014)
14	Lee Epstein, An Introduction to Empirical Legal Research (Oxford: Oxford University Press, 2014)
15	Dawn Watkins and Mandy Burton (eds), Research Methods in Law, 2nd ed (Abingdon: Routledge, 2018)
16	Peter Cane and Herbert Kritzer (eds), The Oxford Handbook of Empirical Legal Research (Oxford: Oxford University Press, 2010)
17	Mark van Hoecke, Methodologies of Legal Research (Delhi: Hart Publishing, 2017)